

Chapter 6

Child Pornography and Pedophilia

The young have always and everywhere been objects of sexual fantasy and involvement, at least for some adults. Throughout the world's societies this reality is reflected in the myriad laws, cultural taboos, and social arrangements designed to prohibit or restrict physical interaction, especially within the family, between various adults and children and thereby lessening the opportunities for sexual contact. By law and custom, virtually everywhere having sex with a minor is deemed wrong and typically also criminal (Lowder 2011). Nevertheless, probably in every society juveniles and even very young children have been subjected to sexual involvement besides being exposed to sexually explicit activity and advances by adults and other youths. In this regard, pedophilia and child pornography have been very much a part of human history. Such conduct appears to have been a normal part of Western cultures well into the Renaissance. And explicit sexual images depicting children appear to have also existed ever since pornographic images have been produced (Davidson 2005; Taylor and Quayle 2003). Indeed, the historian Philippe Ariès (1962) points out that up until the end of the fifteenth century Western European children were routinely subjected to explicit sexual talk, fondling, and exposure – something that was neither considered unnatural or necessarily frowned upon. According to Ariès (1962: 100) people today would be “... astonished by the liberties which people took with children, by the coarseness of the jokes they made, and the indecency of gestures made in public which shocked nobody and which were regarded as perfectly natural.” While actual sexual acts between adults and, at least very young, children may have been considered untoward, the idea that children should be shielded from “sex” was a foreign concept in Western culture well into the eighteenth century (see Myers et al. 2002).

The idea that children were special and in need of care and protection grew in popularity with the invention of the concept of “childhood” in Western societies by the nineteenth century. Children were to be “protected” from all manner of harm – an idea that found world-wide expression in the United Nations Convention on the Rights of the Child in 1989. Among these protections were prohibitions against sexual activity on the part of children, and especially any such activity that involved

adults. Young people witnessing or being exposed to such behaviors was considered repugnant. Not only were the young to be protected from having sex, but they were also to be shielded from even being exposed to it (Olafson 2002).

In contemporary societies many people feel that having sex with persons thought to be “too young” for such activity is offensive and immoral. And in countries throughout the world this behavior has also been rendered illegal. Besides being morally condemned and socially disgraced, offenders can be subjected to criminal punishment and restrictions. To be recognized as a “child molester” is arguably the worst social identity one can have in contemporary society. In some countries, prisoners convicted of sex crimes involving children are often either placed in protective custody to avoid their becoming the objects of attacks from other inmates. The example of an inmate in Pennsylvania is not uncommon. Accused of child pornography, this inmate was subjected to all manner of physical and sexual abuse by other inmates and guards did nothing to intervene in stopping the attacks (Rubinkam 2010). And in many jurisdictions, even after serving their full sentences sex offenders remain institutionalized – sometimes for life – because they are deemed too dangerous to be let loose on potential unsuspecting victims (Cohen and Jeglic 2007; Wright 2009).

As the means to distribute pornographic material to the masses developed over the centuries, efforts grew to protect children from being exposed to objectionable material and to regulate, if not totally ban, the distribution of pornographic depictions of children (see Carr 2003). And with the threats of criminal sanctions and public exposure, the ability of pedophiles seeking out such imagery, or worse, to contact children to victimize, has become increasingly difficult and dangerous. Undoubtedly, children around the world continue to be exposed to objectionable material and sexually victimized in every conceivable way by adults and older youths, especially within the home and institutional environments. But, by the twentieth century, some measure of protection had evolved to shield children from this kind of victimization, even if this protection is minimal in many societies across the globe. The widespread use of the internet, however, has changed even that.

The Internet and Child Sex-Victimization

The direct or indirect sexual victimization of persons deemed by law and custom to be inappropriate sexual participants is probably a matter of concern for parents and authorities everywhere. Keeping one's child away from a known or suspected predator is something parents and guardians seem to be attuned to worldwide. Taking legal action against offenders or implementing ways to protect children from known predators are tasks that law-enforcement agencies are attempting to pursue in many countries. But, no matter how vigilant guardians are, or how punitive retaliatory measures may be, the problem of protecting young people from sexual victimization is a daunting challenge to people everywhere. Globally, that challenge appears to have been greatly hindered with the advent of the internet (Thornburgh and Lin 2002).

The internet has opened up all corners of the world to virtually anyone able to log on to the worldwide net. As such, it has become a vehicle of immense importance to human betterment and communication. It also has its dark side. The internet provides pornographers a hitherto unimaginable ability to dispense sexually explicit imagery of children as well as to expose children to pornographic materials of all kinds. And it offers new opportunities for sexual predators to contact, and ultimately physically victimize, children.

Besides exposing young internet users to unwanted and unintended sexually explicit images of all kinds, the internet has been a virtual boon for pedophiles in accessing all manner of imagery depicting children and juveniles in sexually explicit poses and activities. Literally millions of such images involving tens of thousands, if not millions, of young people are made available in cyberspace each day. These images are produced, accessed, shared, and sometimes sold by unknown numbers of persons around the world. Research from Germany, for example, reports that the internet has replaced classified ads as a primary way to bring together suppliers and consumers of child pornography (Hesselbarth and Haag 2004). However, to what extent the world-wide distribution of child pornography is commercially organized is not clear. A 1988 study in Australia, for example, reports that no evidence of the organized production of child pornography could be found at that time. Such material was available to internet users, but it appeared to either consist of images resulting from child sex abuse by family members, or others, in the household or recycled material produced in the United States during the 1960s and 1970s. However, the researchers anticipated that the commercial sale of images would likely increase in Australia in coming decades (Grant et al. 2001).

In addition, through chat rooms and other means of communication, the internet has opened an entire new world for sexual predators to contact prospective young victims. Such contact provides all manner of opportunity for pedophiles to lure unsuspecting youths into providing predators with sexually explicit talk, photos, and films of themselves and/or other youths. More seriously, offenders have found a seemingly fail-proof way of setting up rendezvous with victims for sexual liaisons. In some instances these contacts have resulted in the death of the young victim.

People around the world have become aware of the real, and potential, threats that the internet poses to children from undesired exposure to sexuality and contact with sexual predators. And the task of combating child pornography and sexual victimization greatly facilitated by internet technology has become a matter of global concern. Agencies from the United Nations to local police departments and numerous NGOs and citizen groups have become involved in addressing the concern (see, e.g., Arnaldo 2001; Klain et al. 2001). The main focus of activism has been combating the apparently growing international spread of child pornography. Yet, how big the problem of child pornography may be, how harmful it may actually be to the world's children, or what should or can be done about the issue remain unresolved questions. Thus, probably more than any other form of child victimization, efforts to combat the sexual victimization of children in nations across the globe illustrates both the possibilities and difficulties of global cooperation in addressing problems relating to child victimization of any kind.

What is the Problem?

Young people are sexually victimized in two major ways: direct and indirect (see Bocij and McFarlane 2003; Carr 2003). Direct victimization involves any physical sexual or sexually-arousing contact involving individuals deemed minors by law or custom. Examples would be sexual intercourse of an adult with a minor or watching a minor undress or using a minor in the production of pornographic material of any kind. Indirect victimization consists of viewing child pornography or sexually intimidating or harassing a minor through some media, such as telephone or email. The advent of the internet has greatly facilitated the possibilities for both (see: Wortley and Smallbone 2006).

Direct Victimization

Direct victimization consists of underage individuals being physically involved in sexual acts of any kind, either with persons of their own age or older individuals. The primary concern here is with (typically) adults forcing, seducing, enticing, or tricking underage individuals to engage in sex acts with them or with other young people or adults. Of most concern is the danger that some adult stranger will have sex with a minor or minors. The common media depiction of the “sexual predator” enticing some young victim into his car to be sped away, abused, and physically harmed or killed is the prototypical image people have of the “sex offender.” Equally common are the apparently “normal” people found to have long histories of sexual abnormality, eventually caught committing some offense bringing them to the attention of the media. Examples of such predators are all too frequent in the Western media. MSNBC (2010), for example, reported that a former NBA all-star was arrested in Texas for “sex trafficking” following the abduction of a 14 year old girl who the accused forced to have sex with various men and dance at a strip club (MSNBC 2010). A Delaware pediatrician was indicted on 471 counts of sexual crimes against 103 children – all patients of the doctor – whom the doctor video taped while he was abusing them (Chase 2010). In Manchester, UK a 16-year-old boy was accused of kidnapping and raping a 5-year-old boy (BBC 2009). A female nursery worker from Plymouth in Devon, UK was charged with four counts of sexual assault on children in her care (BBC 2009a). In the worst case scenario, a convicted sex offender in County Durham, UK admitted kidnapping, raping, and murdering a 17-year-old girl he met on Facebook while posing as a teenager (BBC 2010). Such cases are by no means limited to Western nations. For example, In Jakarta, Indonesia a man confessed to raping at least 96 boys aged 13–17 (Associated Press 2011). A director of a prison in Paraguay was suspended after being accused of allowing pornographic films of juvenile girls to be produced inside his prison (BBC 2010a). And in Afghanistan government leaders signed an agreement to not only stop recruiting children into the police force but also to ban the common practice of using boys as sex slaves by military commanders (Norland 2011).

But probably more than some “pervert” driving around suburban neighborhoods looking for kids to victimize, inappropriate sexual contact is more likely to occur between someone the victim already knows, such as a teacher, coach, older peer, or someone living in or visiting the victim’s home. Even more unthinkable are sexual acts committed by an older sibling, parent, or other relative. Probably one of the most disturbing cases was that of a 73 year-old Austrian man who confessed that he had imprisoned his daughter in a cellar of his home for 24 years and had fathered seven children with her (BBC 2008). A similar case was reported in Poland where a man was accused of imprisoning and raping his daughter, fathering two children with her while holding her captive for 6 years (MSNBC 2008). In the state of New Jersey a man was accused of beating and raping his five daughters for years, impregnating three of them. Much of this abuse took place even when the family was under scrutiny by the state welfare agency (Porter 2010). And a man in Montreal, Canada received a 5 year sentence for sexually assaulting a 10 year-old girl he claimed to be his wife (MSNBC 2009).

A second form of direct victimization involves the use of underage individuals in the production of pornography. Such depictions may be produced for one’s own consumption, or to be shared with or sold to others. Young people depicted in pornographic photos and films are sexually victimized by simply being involved in sexual or sexually arousing poses, conduct, or acts. It is irrelevant whether or not their participation in the production of this material is forced, enticed, or voluntarily. Similarly it is immaterial whether or not they knowingly or unwittingly engage in what are considered inappropriate behaviors. And irrespective of whether or not the material is produced for “private” consumption or for commercial gain, the production of such material in and of itself involves victimization.

In some cases, usually involving both adults and children, the pornographic depictions are horrific. As reported by Hodge and Lietz (2007: 168) “Videotapes depict children being raped, tortured, and even murdered on film.” And in cyberspace this victimization can last virtually forever. It is this apparently booming market in child pornography that has raised most concern among authorities and child protection activists. Hughes (2000) describes a Cambodian website called the “rape camp” that depicted “sex slaves” – some of whom were clearly children – being gagged, bound and blindfolded while being forced to engage in various sex acts. Viewers could actually submit torture requests that would then be fulfilled in real time. Other web sites advertise such “lovely” procedures as “needle torture,” “hanging bondage,” “tits nailed to board,” “drunk from the toilet,” or allow viewers to “command” whatever forms of torture and degradation they wish (see Hughes 2002).

The internet has facilitated the direct sexual victimization of children in a variety of ways (Carr 2003; Hughes 2002). First, and most worrisome, the reach and anonymity of the internet increases the opportunities of sexual predators to locate, contact, and gain access to victims (Chase and Statham 2004; The Coalition Against Trafficking in Women 1999). Chat rooms, facebook, and other interpersonal sites made possible by the internet, along with the large number of young people seemingly addicted to these vehicles of interpersonal exchange, have given sexual predators opportunities older generations of pedophiles could never have imagined.

Sexual predators with the knowledge of how to exploit these avenues of communication have unprecedented opportunities to locate, target, and groom potential victims with seeming anonymity. This enables them to lure guidable youngsters to personal meetings that could result in sexual abuse and the victim's possible death, as with the "facebook" predator of County Devon. A far cry from hanging round school yards, or befriending neighborhood kids, as a way of accessing victims, interpersonal communications over the internet has come to provide the predator a vastly greater pool of potential victims. Indeed, in some known instances sexual predators in countries far removed from the victim have been able to gain access to and, in some cases actually entice, victims to travel to meet with them (Davidson and Martellozzo 2008).

Yet, recent research in the United States casts some doubt on how serious the actual threat posed by the sexual solicitation of children online may be (The Internet Safety Task Force 2008). According to this analysis, in fact, it was concluded that rather than adult sexual predators, being victimized by on-line bullying by other children is by far the greatest problem that young people face from social networking web sites.

A second, and no less worrisome issue, is the immense availability and ready access potential predators have to a wide range of child pornography made possible by the internet. Beyond anything imaginable with print media or celluloid film, the internet makes available to those who desire to access anything from photos of young persons in seductive poses or various stages of genital exposure to live performance of sex acts on demand (Arnaldo 2001; Hughes 2002).

Offensive and illegal in it self, a secondary concern with the widespread and easy availability of this material is the possibility that child pornography on the web could lead to the direct physical victimization of children other than those portrayed in the media itself. Although it is difficult to document empirically given that little research actually exists, experts and those seeking to protect children from sexual victimization are concerned that viewing child pornography can lead to direct-predatory sexual victimization. Concerning the recent apparent explosion in child pornography made possible by the internet, John Carr (2003: 7) argues that the:

increase in looking, collecting and possession is leading to more children being abused than otherwise would have been the case, because

- (i) it is very likely to cause a proportion of this enlarged population of 'lookers, collectors and possessors' to go on to abuse children
- (ii) it also creates a demand for new child abuse images to be produced, and in order to produce these new images more new children will be recruited to be abused.

A number of experts feel that viewing this material can act as a stimulus for child-sexual victimization by those who would otherwise never engage in such activity. In a kind of causal sequence, it is felt that some people who inadvertently or purposively view child pornography could be encouraged to become sexual predators as a consequence of their having viewed the material, or for those who are already so inclined toward or engaged in this conduct to do so more frequently.

There is no scientific evidence to show that viewing pornography of any kind causes people to engage in sexual activity they otherwise would never have thought

of doing. Indeed, Stanley (2001: 7) points out that research "... to date has not determined whether child sex offenders are more, or less, likely to offend if they view and/or collect child pornography." However, the prospect that child-porn could lead to child-sexual victimization remains a troubling one and, even if not demonstrated scientifically, many people feel that the prospect alone is reason enough to combat the availability of such material to anyone.

Aside from the use of children in the production of this material and its possible stimulating effects on would be predators, citizen groups and authorities are concerned that the widespread availability of child pornography can increase the likelihood of direct sexual victimization of young people in other ways as well. For one, it is felt that the seeming commonality of child pornography can help validate pedophiles' deviance to themselves, thereby increasing the likelihood that they will actively seek to carry out predatory acts. In addition, by sharing pornographic images and the like among persons of similar orientation, pedophiles gain a sense of community that allows the individual to rationalize that he (she) is not alone. After all, if it is on the web it must not be "abnormal." "I'm not a pervert; lots of people feel the same way I do." These and similar rationalizations are believed to allow offenders to justify their behavior. Such validation could be translated into further action on their part resulting in their victimizing more children, or doing so in more harmful ways. Indeed, pornographic depictions may expose some people to forms of sexual abuse they may never even have imagined (see Chase and Statham 2004a).

Indirect Victimization

While the threat that young people will be used in the production of sexual material or subjected to sexual acts is the major reason people are concerned with the impact of the internet on child sex-victimization, children are also victimized indirectly in a number of ways relating to the activities of sexual predators and child pornographers. This victimization has also been greatly facilitated by the advent of the internet.

Indirect victimization takes a number of forms. One obvious form is the continued victimizing the viewers of pornographic material inflict on the child each time the victim's images are accessed. Youths used in the production of pornographic material are essentially "revictimized" each time a person views their image, even if that victimization is not a direct form of physical contact. Referred to by some as "cyber sex," this "revictimization" can continue for decades.

A second form of "indirect victimization" is "cyberstalking" where sex predators use the internet as a way of harassing young victims who may once have been involved in sexually explicit exchanges with the stalker or youths who have resisted such exchanges, eliciting the wrath of the predator (Bocij and McFarlane 2002). Related to this is the possibility that victims can be blackmailed by predators. Pornography can also be used to control victims by photographing the victims in such a way that they are clearly identifiable and then threatening them that particularly degrading photographs will be made available to family members or the public. According to Carr (2003: 3).

... children have been persuaded to perform and photograph or take videos of sexual acts that they have undertaken either alone or with friends, and these images have been sent to the abuser. Such images might later be published on the internet and become part of the stock of child abuse images that are traded between collectors or sold commercially. They can also give the abuser a greater hold over the child because they can be used to blackmail the child into performing other sexual acts and into keeping the relationship a secret.

A recent and apparently growing problem, related to this is a practice called “sextexting” or “sexting” where youths send sexually explicit images of themselves to one another, assuming such images will be kept private only to find that they are spread to a wide audience, or even wind up on the internet for anyone to access. In some cases, juveniles producing and sending such images have been prosecuted as sex offenders and have to register as such, even though the behavior was more akin to a form of youthful mischief as opposed to criminal sexual offending to which the law in question was really directed (see Kovac 2009).

The desire to protect young people from being exposed to sexuality of any kind has been rendered almost impossible by the ready available of sexually explicit material by the click of a computer or cell phone key. In the past, generations of Western children may have gained access to “racy” magazines, books, or even films. But moral activists became quite successful in keeping such things out of the reach of, at least, the very young. And concerned parents who may have possessed such material may have been skillful in hiding it or restricting their children’s access to it. Without constant monitoring and blocking, however, the internet offers anyone logged on to the web ample, even if unwanted or unintended, exposure to graphic sexual material, and adult and child pornography. Young people can easily access, or inadvertently access, such material almost anywhere in the world. Such direct exposure (even if in a virtual world) to explicit sexual activity has greatly distressed many, and all manner of efforts – even if largely unsuccessful or unrealistic – have been attempted or proposed to curb the harm people feel may come from such exposure. But, as much as adults fear the “corruption” of young people by their exposure to sexually explicit material, The Internet Safety Task Force (2008: 5) found that:

The Internet increases the availability of harmful, problematic and illegal content, but does not always increase minors’ exposure. Unwanted exposure to pornography does occur online, but those most likely to be exposed are those seeking it out, such as older male minors.

As undesirable as it may be to many adults for young people to be exposed to sexually explicit material, just how harmful, if at all, such exposure may be is an unsettled question. Thus, as John Carr (2003: 4) suggests, “Some argue, ..., the impact is nil to very little, others argue that it can be positively beneficial whereas a third group, ..., seem to believe it can either be harmful or very harmful”. As noted by Stanley (2001: 9) some commentators “... believe that extreme concern about the impact on children of exposure to sexually explicit material on the Internet does not appear to be warranted.”

Whatever the case, as Carr (2003: 5) notes “Never before has such a large volume of such a wide range of pornographic images been so readily available to minors.” And, even if the actual or potential harm such availability of images may be minimal, protecting the world’s children from that actual or potential harm has become a major challenge to concerned people across the globe.

Extent of the Problem

The involvement of children in sexually explicit acts and/or their exposure to such conduct is by no means unusual in the modern world, even if it is considered by many to be repugnant, condemned and illegal. Although this, in it self, is of concern to some people, curbing the most blatant forms of such conduct and exposure has gained the most attention from authorities and concerned citizens. But just how extensive is the problem?

No one knows how many people engage in the sexual victimization of minors. No one knows how many people are engaged in the production distribution or consumption of child pornography. No one knows how many young people are directly or indirectly sexually victimized. No one knows how frequently any of these forms of victimization actually take place in any one country, much less across the globe.

Given the figures from the limited data we have, it could be concluded that sex involving underage individuals today is as commonplace as it may have ever been at any time in human history. Indeed, especially in Western societies, both children and adults are bombarded with an almost constant flow of sexually explicit advertisement as well as portrayals on television and movies. So, in some respects virtually everyone in the modern (at least Western) world is constantly exposed to sexuality on a daily basis. What concerns most people, of course, is how extensive the problem of direct physical sexual “abuse” might be, or how pervasive the exposure of young people to unwanted and undesirable pornography actually is. At best, any answers to these questions would be unsubstantiated and probably unsustainable guesses (see Helweg-Larsen and Larsen 2005; Hopper 2007; Renold and Creighton 2003).

Reports of “mass” arrests resulting from “crackdowns” on child pornography rings would lead one to conclude that the problem is both extensive and worldwide. For example, in 2008 Spanish police arrested 121 people and seized discs containing millions of videos and photos that were distributed to 75 different countries (MSNBC 2008a). Another 19 men affiliated with this ring were arrested in Australia (BBC 2008a). And, in a major case, Austrian authorities uncovered an international child pornography ring ultimately leading to the arrests of 2,360 suspects in countries around the world (MSNBC 2007).

Like data for many forms of victimization involving young people, no central systematic data source exists that provides counts of the relative prevalence and incidence of the various forms of sexual victimization young people experience. Indeed, most countries throughout the world do not even compile such information at all. And even where information may exist in some archive or government file, its availability may actually be suppressed. In some countries reports of abuse (suspected and/or substantiated) made to authorities (usually social service agencies of some kind) offer some information on the extent and nature of abuse in those countries. Law enforcement arrest and court information – or media reports of these activities – also allow us to gauge various aspects of the problem. A variety of governmental and non-governmental organizations exist that collect statistics of various kinds for specific countries and, to a very limited extent, the world. And retrospective self-reported victimization surveys carried out by national

governments or individual researchers can be helpful in gaining an understanding of the characteristics of victimized individuals and the circumstances of their victimization. But all these data sources only provide fragmented information of uneven quality and validity so that anyone wishing to draw conclusions from what is “known” about child-sex victimization must be cautious.

However, the lack of reliable international data does not mean we can not reach some understanding of the scope and nature of the problem from the information at hand. Based on the piecemeal data we have, at minimum a number of reasonable conclusions can be drawn about the dimensions of child sexual victimization.

Scope

The sexual victimization of young people is universal. No society, no matter how strict, religious, or protective of its children is free of child sex-victimization in virtually all of its forms. Thus, children are at risk everywhere in the world. According to research conducted for the United Nations in 2002, over 150 million under-aged girls and 73 million under aged boys were subjected to forced sexual intercourse or some other form of sexual violence. In 2000 it was estimated that close to two million children were forced into prostitution and/or pornography (Pinheiro 2006). A survey of research conducted in 21 countries around the world revealed that sexual abuse is an international problem. As shown by the figures in Table 6.1, sexual abuse rates ranged from a low of 3% for males and 7% for females to highs of 29% for males and 36% for females. And these rates suggest that actual sexual abuse rates are far greater than official data would suggest (Finkelhor 1994: 411).

Most of the available data by which we can make some determination of the extent of sexual victimization in various societies is derived from official records of cases reported to or detected by authorities. Since it is believed that few such cases actually receive any official attention and, therefore most go uncounted, a second source of information is based on retrospective self-report victimization surveys. Table 6.2 reports summary findings from this kind of research carried out in seven Western countries. While the proportions reported in Tables 6.1 and 6.2 can not be directly compared, they exemplify the relative extent and nature of the sexual victimization experienced by young people in countries around the world.

As indicated by Tables 6.1 and 6.2, sexual victimization can occur in virtually any kind of society. While most of the information we have concerns Western nations, Third World or traditional societies are by no means immune to this kind of victimization. For example, a study of women in a “conservative and traditional Bedouin-Arab” community in southern Israel found that 69% reported that they had never experienced sexual abuse as a child, 16% reported they had one or two experiences, 11% three or four, and 4% more than four. In contrast to sexual abuse, far greater proportions reported that they had been physically and/or psychologically abused by a member of their family (Elbedour et al. 2006). Essentially none of this

Table 6.1 Sexual abuse rates for twenty countries

Country	Prevalence per 100		% Intrafamily	
	Women	Men	Women	Men
Australia	28	9	35	17
Austria	36	19	26	9
Belgium	19	—	34	—
Canada	18	8	44	6
Costa Rica	32	13	43	19
Denmark	14	7	42	25
Dominican Republic		33%		39
Finland	7	4	?	?
France	8	5	23	6
Germany	10	4		50
Greece	16	6	33	23
Great Britain	12	8	14	13
Ireland	7	5		37
Netherlands	33	—	46	—
Norway	19	9		24
New Zealand	32	—	38	—
South Africa	34	29	30	17
Spain	23	15	16	4
Sweden	9	3	18	0
Switzerland	11	3	56	0
U.S.	27	16	29	11

Source: Based on Finckelhor (1994: 412). Note, since data for each country are for different years and based on different data sources, proportions are not directly comparable and should be treated as relative

Table 6.2 Prevalence rates of child sexual abuse, by country

Country	% Any Abuse		% Contact Abuse	
	Males	Females	Males	Females
Canada	4.3	12.8	3.9	11.1
Finland	3.0	8.0	—	—
Ireland	23.6	30.4	16.2	20.4
New Zealand	3.4	17.3	3.0	13.0
Switzerland	10.9	33.8	3.3	20.4
United Kingdom	11.0	21.0	7.0	16.0
United States	5.9	15.3	1.0	6.9

Source: Based on Table 6.1 in Creighton (2004: 3). Note, since data for each country are for different years and based on different data sources, proportions are not directly comparable and should be treated as relative

abuse was ever reported to authorities. Research in Estonia on abuse referrals to a Child Support Center produced similar findings. Of the cases, only 7.4% were for “sexual” abuse. Most victims knew the offender and practically none of the cases actually reached the courts for prosecution (Rommeldi 2004).

Prevalence

Literally millions, perhaps tens of millions, of children are subjected to direct physical sexual victimization across the world every year. And this direct sexual victimization by predators as diverse as a parent, clergy (man or women), neighbor, sibling, teacher or coach, stranger, or essentially anyone with access to young people, can occur anywhere in any country. In the United States, for example, the Department of Justice reports that over 105,000 substantiated or indicated cases of child sexual abuse occur each year (Estes and Weiner 2001: 15). Since it is believed that the vast majority of such cases never come to the attention of authorities, this number undoubtedly grossly under-counts the actual number of cases. According to an organization called ECPAT (an international organization dedicated to ending child sexual victimization of all types), since the establishment of a “hotline” called CyberTipline to help combat the sexual exploitation of children in the United States, a picture of just how extensive the child pornography industry may be is becoming clear. For example, more than five million images of sexually exploited children have been reported to the hotline by internet service providers (ECPAT 2008).

An American organization called Darkness to Light (2008) provides a summary of statistics largely based on United States information that paints a telling picture of the extent to which young people are sexually victimized. According to this information, one of every four girls, and one in six boys are abused in some way before age 18. One out of five are solicited on the internet. Of the abused children, 30–40% are abused by a family member, while only 10% are abused by strangers. More than 20% of the abused children were below age 8 at the time and about 50% of those subjected to forced sodomy, sexual assault with an object, or forced fondling were younger than age 12.

To what extent these proportions apply to young people elsewhere can be gleaned from the bits and pieces of research that have been conducted in countries around the world. One study employing nationally representative data from samples of female respondents in El Salvador, Guatemala and Honduras casts some light on the question. According to this study the experience of some form of child sexual abuse was highest in Honduras with 7.8%, followed by El Salvador at 6.4%, and Guatemala at 4.7%. Based on a survey of a representative sample of adolescents in Geneva, Switzerland researchers report that 20.4% of girls experienced sexual abuse involving some kind of physical contact while only 3.3% of the boys reported this experience. Experience involving some form of penetration was far less prevalent in that 5.6% of girls and 1.1% of boys reported this kind of abuse. About one half of the respondents who reported some sexual victimization said the first experience occurred before they were age 12 (Halperin et al. 1996). A large study of different forms of abuse in India produced results that were both similar to and in some cases surprisingly different from other studies (Kacker et al. 2007). Among a sample of 12,447 children, more than 53% reported that they had experienced one or more forms of sexual abuse. Surprisingly, more than one-half of those who experienced abuse were boys. Sexual abuse of any kind began as early as age 5 increasing in frequency up to about age 15. Significantly, almost 21% of the respondents had

been the victims of “severe” forms of sexual abuse including sexual assault, making the child fondle or exhibit private parts, or be photographed in the nude. The genders of children experiencing severe sexual abuse varied in that rates for girls were higher in some states while higher for boys in others. Sexual assault was defined as penetration of the anus, vagina or oral sex. Overall, close to 6% of the respondents reported having experienced this form of victimization. Departing from research in other countries, a majority of the victims of such sexual assault were boys. In all cases of sexual victimization the overwhelming majority (70% or more) of the victims did not report the event to anyone. And, as in other countries, relatives, associates, classmates, or authority figures were the most frequent offenders.

Indirect victimization is difficult to document since much of it is never reported to anyone, and there are very few data sources that even record incidents of this kind of victimization. One national survey of youths who were “regular” internet users in the United States gives an indication of just how prevalent online abuse may be (Finkelhor et al. 2000). According to this study one out of every five users received sexual solicitation over the internet the previous year. One in 33 experienced “aggressive sexual solicitation.” Against their will, one out of every four users was exposed to pictures of naked people or people having sex in the past year. And one in 17 were harassed or threatened in some way. The vast majority of these episodes were not reported, either to parents or authorities.

An organization called Internet Filter Review that monitors websites for pornographic material and related matters compiles statistics that reveal the extent to which child pornography has become a staple of the world wide web. According to their report (Repelato 2010), 12% of all websites are dedicated to pornographic depictions of some kind. Some 25% of all daily search engine requests are to such sites, and almost 43% of internet users view pornography at some time. A child-porn website called “Gnutella” received 116,000 requests, and over 100,000 such websites can be found on the internet. One in seven youths received sexual solicitations via the internet, an apparent decline since 2003.

Trends

It is impossible to empirically document, but there is reason to fear that all manner of child sexual victimization is becoming more frequent and prevalent, and is doing so worldwide. The Internet Watch Foundation (IWF 2006) reported a 24% increase in suspected websites providing illegal content to viewers in the first 6 months of 2005. It is not known if this is a result of an actual increase in the number of sites showing child pornography or a result of increased reporting of such sights by concerned citizens. Of these sites some 5000 clearly contained images of child pornography. More than half of these originated from the United States, and about 15% could be traced to Russia. A more recent report by the UN Human Rights Council (2009) concluded that in 2004 more than 480,000 web sites exist worldwide showing images of sexually exploited children. This number was double that of 2001. It has also been estimated that at least 750,000 child sex-predators were connected

to the internet at any one time. The number of sites showing “serious exploitation” quadrupled between 2003 and 2007. According to this report:

Thousands of new photographs and videos are uploaded on to the Internet every week and hundreds of thousands of searches for images of sexual exploitation of children are carried out every day. Offenders may possess collections of over a million images of sexually exploited children. It is estimated that 200 new images are put into circulation every day (UN Human Rights Council 2009: 9).

An analysis by the Internet Watch Foundation also reveals that the actual number of abusive images and the frequency of extreme levels of abuse have dramatically increased between 2004 and 2006 so that more and more violent forms of sexual victimization are becoming available on the web (Quayle et al. 2008). According to figures published by the National Center for Missing and Exploited Children in the United States, reports to CyberTipline regarding child pornography in 2007 had increased overall by 23%. Even worse, there was a 66% increase in online enticement reports, a 58% increase in child prostitution reports, a 10% increase in child-sex tourism, and a 9% increase in reports of child molestation (ECPAT 2008).

Efforts to combat child sexual victimization might be having some impact. This is indicated by the finding that “unwanted” sexual solicitations declined between 2000 and 2005 in the United States. This decline, however, was not evenly distributed according to the race or income of victims. And, while solicitations declined, sexual harassment and exposure to pornography actually markedly increased among some demographic groups (Mitchell et al. 2007). Law enforcement efforts may also have impacted the production and distribution of child pornography. A number of reports indicate that between the 1970s and 1990s a shift took place from “professional commercial” to “amateur” production and distribution. However, the fear is that a commercial “for-profit” industry has begun to reemerge due to the growing demand for pornography in recent years and the improved technological ability to bypass efforts by authorities to block access to such material involving children (see Renold and Creighton 2003). And some law-enforcement agencies have reported a tremendous growth in cases involving child pornography. It is not clear whether or not this growth is a result of “crackdowns” on such activity or represents a real boom in the distribution of and access to child pornography. But, according to one report, not only has internet availability of child pornography “exploded,” but the “images increasingly seem to feature younger children – infants and toddlers – being molested for the cameras in more violent and egregious ways” (MSNBC 2009a). And, as reported by the National Center for Missing and Exploited Children (2009), in spite of efforts to combat it, child pornography is among the fastest growing businesses on the internet.

Offenders

The individuals who sexually victimize young people are not a distinctive group (Wortley and Smallbone 2006). In fact, they could be just about anyone – parent, priest, school teacher, neighbor, “best friend,” scout leader, total stranger. Although males appear to dominate the ranks of offenders, women are by no means immune

from sexually victimizing children. For example, older European women tourists vacationing in Kenya are reported to often seek sexual liaison with “big young boys,” some of whom are legally minors under international law (MSNBC 2007a). More shocking are reports of abuse by child caretakers as occurred in a case in the United Kingdom where two female and one male worker allegedly abused nursery school children (BBC 2009a, 2009c).

Media reports only depict a fraction of the offenses and offenders that actually may exist, but these reports exemplify the wide range of child sex-offenders and their behaviors found throughout the world. Of contemporary reports, perhaps the most contentious is the worldwide scandal involving members of the Roman Catholic clergy whose abuse of parishioners’ children (mostly boys) was known and covered up by Catholic Church authorities for decades (see, e.g., Bennhold et al. 2010; BBC 2009b; MSNBC 2009b). Even such venerated institutions as the Boy Scouts are not immune to charges of sex abuse by scout leaders and an organized “cover up” of their activity by Scout officials (MSNBC 2010a). And even United Nations “peace keepers” have been reported to have abused youngsters under their protection in various countries (see, e.g., BBC 2005; 2008b; Lyall 2006).

Contrary to popular media images of the sexual predator cruising neighborhoods in search of victims to snatch from the streets, most child-sex offenders are actually known to their victims. For example, a study of sexual assaults of young people reported to law-enforcement agencies in the United States reveals that more than a third of the persons assaulting juveniles in America were members of their own family. Almost 60% were acquaintances of the victims and only 7% were strangers (Snyder 2000: 10). In one extreme case, five men in rural Missouri were arrested for allegedly sexually abusing female relatives over a period of 20 years. Charges included crimes against children, using a child in sexual performance, forcible sodomy and forcible rape (MSNBC 2009c). And in Poland a man held his daughter captive for 6 years, raping her and forcing her to give up for adoption the two boys he fathered with her (MSNBC 2008b).

Types of Offenders

What is clear is that sex offenders are by no means all of a kind. In a rather simple categorization we can distinguish between people for whom children are sexual objects and those who use children in sexual ways for other purposes. In this case, people who can be diagnosed as “pedophiles” directly and/or indirectly seeking to victimize underage individuals due to their sexual proclivity (for discussions see: Davidson 2005: 85–106; Linz and Imrich 2001; Taylor and Quayle 2003: 12–14). They are sexually stimulated by children or adolescents and, unless inhibited in some way, may actively seek them out for sexual gratification. Often referred to as “perverts” and viewed as “sexual predators,” such individuals are often felt to be responsible for much of the direct or indirect victimization of young people that occurs across the globe. However, that conclusion remains empirically questionable and there is good reason to believe that many of the people who sexually victimize children would not be diagnosed as pedophiles.

Sexual “profiteers,” for example, may, or may not, have any sexual orientation toward young people, but victimize children sexually for economic gain by, for example, in the production of pornographic material or pimping them as prostitutes. Similarly, “exploiters” may not seek economic gain by their activities but victimize young people sexually for ego gratification, assertions of power, or any of a multitude of personal motivations. They may do so through direct contact with the victims by engaging in sexual-communication in chat rooms or contacting minors in other ways. More commonly, they engage in indirect victimization by viewing pornographic material, in effect, exploiting the children depicted in such material.

Efforts to understand child-sex offenders have produced in a number of typologies that are usually designed to help in the treatment of such individuals or to facilitate law-enforcement efforts to combat the various forms of child-sex victimization (see: Lowenstein 2005). For example, a study of persons arrested for child pornography in Quebec, Canada identified three distinct types similar to the categorization described above: “the explorer,” “the pervert” (who might be isolated or organized), and “the polymorph.” These three types differed primarily in terms of age, the technology involved in their crimes, and their prior criminal histories (Fortin and Roy 2006).

In an analysis prepared for the Australian Institute of Criminology Tony Krone (2004) offers a much more extensive categorization. Krone categorized internet pornography offenders into a wide variety of types: “browser,” “private fantasy,” “trawler,” “non-secure collector,” “secure collector,” “groomer,” “physical abuser,” “producer,” and “distributor.” “Browsers” accidentally come across pornographic material and decide to download and keep it on their computers. “Private fantasy” seekers consciously locate such material by typing in online text to search for it. “Trawlers” are similar to “private fantasy” types but are more motivated and purposive seekers of images depicting children. “Collectors” (sub-divided into “non-secure” or “secure”) seek out and compile large files of child pornography for personal pleasure and/or sharing with others. “Non-secure collectors” do so over open networks with considerable risk of detection, while “secure collectors” seek this material via “secure” networks often consisting of groups of individuals who share material among themselves. All these offenders are “indirect” victimizers insofar as they do not (and usually do not intend to) have physical contact with children for sexual purposes. However, by virtue of their accessing and downloading child pornography these individuals are engaging in acts defined as criminal under international law and the laws of many countries.

“Groomers” and “physical abusers,” on the other hand, are the prototypical sex-predators who actively cultivate and sexually (and often physically) victimize young people they contact on the internet. The difference between the two is one of “success” in that “groomers” attempt to gain access to victims but may be unsuccessful in doing so while “physical abusers” actually do make physical contact with victims.

“Producers” and “distributors” may, or may not, be pedophiles or actual physical abusers. They, however, are the individuals who record their own abuse behavior, or that of others, or make such images available to others, either through networks that share such images among members or commercially for profit. Depending on their physical involvement with the youths being depicted in the images produced

and distributed, these individuals either directly or indirectly engage in child-sex victimization. Irrespective of their direct or indirect involvement in sexual victimization, these are the individuals who feed the booming international business in internet child pornography.

Offender Characteristics

Considerable research has been conducted on individuals identified in some way as being child-sex offenders – both direct and indirect victimizers. Much of that research suggests that these individuals have personality profiles that not only distinguish them from non-offenders but probably also from other kinds of sex offenders. For example, a study of male adolescents in treatment facilities in the United States contrasted those convicted of offenses against pre-pubescent children with those who victimized pubescent and post-pubescent females (Hunter et al. 2003). Those individuals who victimized pre-pubescent children had greater deficits in psychological functioning and exhibited a number of characteristics and background experiences that differentiated them from the other offenders.

In the United Kingdom, a study of clergymen attending a residential treatment center for male child abusers reported that clergy child-sex offenders were similar to other child-sex offenders in that they held extensive cognitive distortions that facilitated their offense behavior. In addition, their religious beliefs actually enabled offenders to overcome inhibitions and minimize any negative emotional effects their behavior may have produced (Saradijan and Nobus 2003).

Finally, numerous studies of sex-offenders engaged in various kinds of such behavior have revealed that a number of cognitive variables are important both to the etiology of such activity as well as to maintaining their predation over time. As stated by Ward et al. (1998: 153) “The ways in which offenders interpret, explain, and evaluate both victims’ and their own actions can function to precipitate and entrench offending behavior.”

It is doubtful, however, that initial sexual offending of any kind could be prevented if we were able to identify such cognitive distortions unless entire populations were screened before any offenses took place. But, such knowledge could play a significant part in treating known offenders and helping to reduce such conduct in the future. Thus, given the extreme diversity, both in behaviors, orientations, intentions, and characteristics that have been found among known child-sex offenders it is impossible to identify “child-sex offender” as any specific type of individual. Indeed, many seem to be, and would claim that they are, perfectly “normal” individuals and would also claim that what they did may be “wrong” but “Gee, everyone does it!” As such, combating this kind of behavior becomes even more complicated. And, even after offenders are identified, preventing them from reoffending remains an elusive challenge. Protecting young people from encountering this kind of victimization therefore requires constant vigilance on the parts of those who care.

Victims

Virtually any child anywhere could be the object of sexual victimization. Indeed, for children everywhere the youth's home is probably the most dangerous place and one's own family members are probably the most likely assailants. In that regard, no child is totally safe anywhere.

Characteristics of Victims

Although virtually any child, regardless of the child's age, gender, or situation in life, can be sexually-victimized in some way, some children appear to be more "at risk" than others. As summarized by Stanley (2001: 4)

Sexual offenders often target children with particular characteristics. These may be children in the care of the state; children who have experienced prior maltreatment; emotionally immature children with learning or social difficulties and problems with peer friendships; love or attention deprived children; children with strong respect for adult status; children from single parent families; children who will co-operate for a desired reward (such as money, computer games); and, children with low self-esteem.

Studies of offenders and internet watch organizations report that pornographic material involving children depict children of virtually all ages, even infants being subjected to brutal sexual acts that undoubtedly caused serious internal injuries and possibly even the death of the victims. According to the National Center for Missing and Exploited Children, children who appear in pornography tend to be (Klain et al. 2001: 8):

- Older children who are involved in prostitution and photographed or filmed by their customers or become involved in commercial pornography
- Younger children, usually prepubescent, who are coerced or manipulated into posing for pornographic videotapes or photographs often in conjunction with actual molestation
- Children of any age who are molested by acquaintance or family members and are photographed or videotaped

Sexual victimization everywhere is gender-neutral. Both boys and girls are subject to this form of victimization. As far as child pornography is concerned, it appears that girls are favored subjects. The Internet Watch Foundation, for example, reports that of the internet sites showing such images, 80% of children involved in abusive images were female and some 91% appeared to be under age twelve (IWF 2006). A study in Israel that involved 26,446 children investigated for suspected physical and sexual abuse between 1998 and 2002 found that two-thirds of the sexual abuse victims were female while boys were a consistent majority for the those cases involving physical abuse (Hershkowitz et al. 2005). And in Zimbabwe a retrospective study of reported child sexual abuse cases found that 98% of those

victimized by their teachers were females with penetrative sex being the most frequent form of abuse. Girls between the ages of 11 and 13 made up 69% of such victims (Nhundu and Shumba 2001). Similar results were found from a review of medical certificates in Cameroun (Menick 2001). All victims were girls with almost 60% being between age 10 and 14 at the time of their victimization.

Girls are the “typical” victims of child sexual victimization but boys are also victimized. Hopper (2007) estimated that one out of every six boys are sexually abused by someone before age 16. Self-report research on male college students indicates that from about 5% to 28% report that they had been “abused” in some way as juveniles. Community samples report ranges from about 3% to 16%.

Information compiled by the National Center for Missing and Exploited Children in the United States, provides demographic profiles of children depicted in online child pornography (see Quayle et al. 2008: 39–43). Of the 1,660 individual children identified, 73% were female and 27% male. More than one-half of the “serious” cases involved prepubescent children. In some cases toddlers or infants were depicted. The vast majority involved “white” children. Where victimized child and offender could be identified, at least 50% of the offenders were either the parent of the victims or a family friend or acquaintance. In 2003 the Internet Filter Review (2003) reported that the child pornography business generated \$3 billion in annual revenue. Almost 90% of 8–16 year old youths viewed online porn and 12–17 year olds were the largest consumers of internet pornography.

Impact on Victims

Besides the fact of being subjected or exposed to acts or material most adults would find objectionable and in some way harmful for children, the main concern people have with children and sex is the possible physical and/or psychosocial effects their victimization may have on the children.

The victims of direct physical sexual abuse often exhibit a number of physical injuries as a consequence of being molested. These include genital bruising, lacerations and sexually transmitted diseases. Indeed, the physical signs of sexual abuse are what often bring such cases to the attention of authorities. It is unclear if children are or are not “sexual” in that they experience and recognize sexual stimulation in the same way that adults do (see Davidson 2005). Regardless of their “sexuality,” physiologically prepubescent youth are not physically “ready” for sex no matter what sexual predators or exploiters may believe. Consequently vaginal or anal penetration can cause serious physical damage to the victims of direct sexual victimization, regardless of the victim’s “willingness” to partake of such activity. Moreover, victims can be infected with all manner of sexually transmitted disease with lasting impact on their wellbeing. And, in many cases, beatings and other forms of physical abuse may be part and parcel of the sexual victimization to which young people are subjected.

In extreme cases, victims of sex-predators may be killed. No one knows how many “missing” children are actually the victims of murder by individuals who

lured or kidnapped them for sexual purposes, but examples of such cases are reported by the media in countries around the world. In the United Kingdom a convicted sex offender admitted kidnapping, raping, and murdering a 17 year old girl by befriending her while posing as a teenager on Facebook (BBC 2010). That same year, in the United States a man who had previously been arrested on numerous counts of child pornography was charged in the murder of a 7 year old girl snatched from the streets near her home. The man had sexually assaulted the girl, killed her, and dumped her body (Detman et al. 2010). In France a repeat child sex offender was sentenced to 30 years in prison for kidnapping and raping a 5 year old boy (France 24 2009). And in Dubai a man was executed for raping and murdering a 4-year-old boy in a local mosque (MSNBC 2010b).

Besides the physical injury they may receive, victims may also face a number of negative psychological and social consequences as a result of their abuse (Barriere 2005; Hopper 2010; Klain et al. 2001). For example, a meta analysis of 37 studies of individuals who had experienced child sexual abuse reveals that posttraumatic stress disorder, depression, suicide, sexual promiscuity, victim-perpetrator cycle, and poor academic performance could all be the long-term effects of their victimization. According to the authors, this analysis provided clear evidence that being sexually victimized as a child had both long- and short-term, often multiple, negative consequences for victims (Paolucci et al. 2001). A review of research published between 1987 and 2005 on sexually abused subjects – including both those abused as adults or as children – revealed a number of lingering psychosocial problems among adult “survivors of child sexual abuse.” Among these problems were poorer functioning in social and interpersonal relationship, greater sexual dissatisfaction, high-risk sexual behavior, and a tendency toward “revictimization” (see Polusny and Follette 2005).

Out of fear, self doubt, or a belief that by doing nothing it will “just go away,” victims of abuse often simply don’t know what to do or how to feel about the victimization. The case of a girl abuse by her swim coach is typical (Goldston 2010: 1).

The normally outgoing girl found herself becoming more quiet and withdrawn by the day. King, 61, never discussed what he was doing to her at a time he was supposed to be massaging a shoulder she had injured. Neither did she. “I didn’t know what to do,” Julia said. When it started, “I felt shock and horror.” As the agonizing months of almost daily molestations passed, “I thought to myself, ‘I’ll just put up with it until I’m 18’ and go away to college.” “But then I thought, ‘what if he does it to someone else?’

It is assumed that children depicted in pornographic displays would have the same emotional and psychological reactions exhibited by child sex-victims generally (Klain et al. 2001). Even though little is known about children exploited in the production of child pornography, there is reason to believe that young people depicted in these productions can harbor intense feelings of powerlessness and concern over how others may view their participation in the production. And, being aware that this material can remain available indefinitely, they suffer knowing its potential consequences on their life chances (see Renold and Creighton 2003). As suggested by Klain et al. (2001: 11).

Child victims of pornography face the possibility of a lifetime of victimization because the pornography can be distributed indefinitely. Physical, psychological, and emotional effects of child sexual abuse are coupled with the possibility of pornography resurfacing. Being photographed during sexual abuse intensifies the child's shame, humiliation, and powerlessness. In addition children tend to blame themselves for their involvement in pornography, and this makes the experience that much more painful. Clearly sexual abuse and use in pornography can frequently hinder a child's healthy, normal development.

But, while the possible physical damage child sex-abuse victims often experience is reasonably clear, the psychosocial impact of child sexual-abuse on victims is far from clear, or clearly detectable in many cases. In one analysis of the literature, Tharinger (1990) concluded that sexually abused children were not affected equally and that a number of factors may operate to buffer or mediate the trauma such abuse assumingly inflicts on young people. Also in an evaluation of the empirical studies of child sex abuse victims Beitchman et al. (1991) contend that it would not be possible to postulate any "post-sexual-abuse-syndrome" for individuals who had experienced such abuse. Indeed, while the clinical research on victims reveals that they suffer from a number of psychosocial problems, such problems characterize child clinical samples generally, whether or not they have been abused at all. Moreover, it was often difficult to determine if any symptoms child sex-abuse victims exhibited were a result of the abuse or due to the disturbed home environments from which many of them came. For example, in a review of studies of victims of sex abuse and their families in Canada (Bagley and Thomlison 1991) found many of the same negative outcomes reported in research on sexually abused youths generally. But he also found that the prevalence of abuse was particularly high in dysfunctional families so that the clinical signs of abuse could just as well be a function of family situation as much as the fact of sexual abuse. And, a study of women who had suffered emotional, sexual, or physical abuse in New Zealand found that all forms of abuse in childhood were associated with various problems in adulthood so that abuse of any kind (not only sexual) can have long-term negative effects on people. In addition, the researchers found that the various "background" factors involving disturbed or disrupted family situations associated with the abuse were themselves equally associated with the later-life negative outcomes. They speculate that the apparent association between abuse and adult problems is partially a result of the disadvantaged childhoods that victims had experienced. These disadvantaged childhoods could also have been responsible for the abuse itself (Mullen et al. 1996).

In short, given the general revulsion people feel when they learn of cases of child sexual abuse, it is reasonable to suppose that being sexually victimized, especially in severe cases of rape, incest, and multiple episodes of abuse, negatively affect victims in a variety of ways. And the clinical evidence, as well as the testimony of adults making claims of such abuse during their childhood, appears to bear this out. However, given that the vast majority of such cases never come to the attention of authorities and few are ever investigated empirically, what specific impact, if any, child sex-abuse actually has on its victims remains an open question.

Law

A standard approach to combating any social problem just about anywhere in the world is to “pass a law” to “stop” or “prevent” it from happening. Child sexual victimization is no exception. Laws against statutory rape and similar direct-victimizing activities have been “on the books” in virtually all countries since the modern era. Prior to the age of the internet, most western societies have enacted laws designed to prevent the distribution of child pornography and prevent children from gaining access to pornographic material. With the advent of the internet legally regulating the production, distribution, or possession of pornographic material involving children remains a contentious issue, as does combating sexual predators who use the net to gain access to victims.

International Law

A significant body of international law exists designed to combat child sex-victimization in its varied forms. Although, at present, lacking the coercive power of criminal law, these laws and agreements, signed by almost all the worlds’ nations, provide a moral and legal framework for countries to enact their own provisions to protect children from being sexually victimized and to punish offenders.

The Convention on the Rights of the Child, or CRC, (UN 1989) established age 18 as a universal age distinguishing the status of child versus adult. In so doing, the agreement provided nations with a common benchmark to enact their own legislation regarding children. In addition, several provisions of this agreement specifically concern the sexual victimization of children. Article 34 exhorts signatory states to “...undertake to protect the child from all forms of sexual exploitation and sexual abuse.” This includes taking action to prevent: “(a) The inducement or coercion of a child to engage in any unlawful sexual activity;” “(b) The exploitative use of children in prostitution or other unlawful sexual practices;” and “(c) The exploitative use of children in pornographic performances and materials.” The Convention does not mention protecting underage individuals from being exposed to pornographic images involving either adults or children.

A “world congress” meeting was held by the organization ECPAT (End Child Prostitution and Trafficking) in an attempt to implement the ideals of the CRC and other United Nations agreements. At its first such meeting in 2007, over 100 governments from across the world committed themselves to eliminating child prostitution, child pornography and the sexual trafficking of children. In addition, extensively promoted by UNESCO, a host of “action ventures” designed to promote implementing the provisions of the CRC have also been initiated around the world (see Stanley 2001).

To add teeth to the requirements of the CRC, the UN (2000) adopted two “optional” protocols one of which explicitly requires states to prohibit the sale of children, child prostitution, and child pornography. Over 150 member states have ratified or signed the protocols. Significantly, these agreements seek to criminalize

activities relating to violations of children's rights as outlined in the CRC and specifically define the offenses for which criminal penalties are to be applied. But, like all UN agreements, it is up to the individual nations that have ratified or signed the protocol to actually put its provisions into effect.

Adding force to the CRC and protocols, in Article 3 (b) of its 1999 Convention the International Labor Organization (ILO 1999) also included "the use, procuring or offering of a child for prostitution, for the production of pornography or for pornographic performances" to its list of "worst forms of child labor." At this Convention, the ILO required its members to take appropriate action to implement measures to eliminate or regulate these forms of child labor and to monitor their progress in so doing. But, as well-intended as the ILO instrument may be in protecting children from sexual victimization, Professor Kadriye Bakirci (2007) raises the disquieting prospect that listing child pornography or prostitution as forms of "child labor" might "legitimize" this activity in some countries, actually causing more trauma for children. Instead, Bakirci argues that regardless of what role children may have when participating in such activities, the children should be viewed as victims and witnesses to crimes, rather than participants in undesirable "labor."

In addition to these agreements other regional efforts have been undertaken to combat child sex-victimization in one fashion or another. Significant among these are the Council of Europe's Convention on Cybercrime (Council of Europe 2001) and the Convention on the Protection of Children against Sexual Exploitation and Sexual Abuse (Council of Europe 2007). The cybercrime agreement urges the 45 countries signing the agreement to criminalize all aspects of child pornography on the internet. Broader in intent, the convention on protecting children offers an explicit definition of child pornography to be adopted by member states and, rather than urging, requires states that sign the agreement to criminalize all aspects of internet child pornography. As of 2010, 33 states had signed this agreement, but only five had ratified it.

As with many other forms of child victimization, since the mid-1990s international and regional organizations have come to recognize that the sexual victimization of children is an international, not a local or limited, problem. In addition, there is growing recognition that this problem is becoming more acute with the spread of the international trafficking of children for sexual purposes, growth of sex tourism, the worldwide expansion of internet pornography, and the increased use of cyberspace for solicitation by predators. Although lacking much in enforcement potential, international and regional agreements provide moral force for individual nations to take action that they otherwise would not and provide universal standards to define and combat the sexual victimization of young people around the world. But, in the end, it is up to individual nations to transform these ideals in to reality.

National and Local Legislation

To the extent that distinctions by age are contained in their laws, virtually all nation states appear to have some kind of legislation prohibiting various forms of child sexual victimization – at least with regard to rape and incest and to a lesser extent

prostitution. In countries that have specific legal protections and procedures regarding “juveniles,” legislation to protect minors from sexual victimization is often extensive and relatively well enforced. Other countries may have laws that, if actually applied, can be used to protect the young from sexual victimization. How well such laws may actually be enforced, however, appears to vary greatly across the globe. And, in many societies what, if any, legal protections actually apply to young people is unclear (e.g., see: Hartjen 2008; INTERPOL 2010).

Zambia is an example of the kind of situation likely to be found in many third-world societies. According to Kiremire (2002: 40–41) the Zambian Constitution “prohibits virtually all the abuses relating to sexual violence.” In addition sections 87/105 of the Penal Code enumerate rights and protections, some of which explicitly apply to young people. For example, sexual abuse/defilement is defined as having sex with a girl under age 16. Rape applies to both women and girls as does “indecent assault.” The law is silent on child prostitution as such, but children under age 16 are apparently protected by the law. It is unclear if prostitution by girls is actually illegal, yet it is a crime to use “girls” for purposes of prostitution, to own premises where girls are engaged in prostitution, or to make a living earning money through prostitution. And, even though child pornography is not explicitly mentioned, possessing or using any pornographic material is outlawed.

As suggested by Kiremire, however, both because of its vagueness and limitations, at present, the law in Zambia is inadequate to deal with child sex-victimization. One glaring problem is the lack of a clear definition of who is a child or young person. Another is the lack of any specific “criminal charge” that can be applied in cases of prostitution or sexual trafficking. In addition, no real penalty for sex offenders is found in the legislation, local courts have no jurisdiction to try the more serious cases, and no specialized child sex-crime unit exists in the police service. And while Zambia has ratified both international and regional agreements, for all intents, none of these have actually been implemented.

In contrast, the government of the Philippines has taken significant steps, at least legally, to protect children from all manner of victimization. Like many other countries a number of laws collectively seek to protect young people from sexual victimization (see Trinidad 2005: 101–113). The main Philippine statute in this regard is the Child and Youth Welfare Code. Although not explicitly referring to pornography, prostitution, rape or similar offenses, the code makes it a crime for parents to directly or indirectly exploit children or encourage them to lead an “immoral” or “dissolute” life. This code however makes no mention of sexual abuse or exploitation of children. On the other hand, it does contain a provision designed to shield young people from being exposed to pornography. Article 201 of the revised Penal Code criminalizes pornography but does not distinguish between child and adult pornography nor does it provide a concise definition of what constitutes pornography.

Although sexual abuse is only one of the varied forms of “abuse” covered by the statute, the Child Abuse Law of 1991 is perhaps the clearest example of legislation that can serve to protect young people in the Philippines against sexual victimization. This law allows the imprisonment of offenders while also addressing the needs of victimized children. Other laws, such as the Anti-Trafficking in Persons Act and the law on Eliminating the Worst Forms of Child Labor, both passed in 2003, further

criminalize the use of children for pornography or the production of pornography. As of 2005 several other bills were pending in the legislature further increasing protections against child pornography and prostitution. Thus, while recognizing a need to explicitly enact legislation designed to protect young people from varied forms of sexual victimization, the Philippines has so far done this in a piecemeal fashion, making it difficult to determine specific offenses and to prosecute offenders.

Exemplifying a country that has recognized a need for explicit child sex-victimization legislation designed to achieve just that purpose the Parliament of Papua New Guinea in 2002 enacted a special law called the Sexual Offenses and Crimes Against Children Act (DCD 2004). In an extensive analysis of this law Luluaki (2003) notes that the “law is wide-ranging and deals with a whole host of sexual abuses that may be committed against children” (Luluaki 2003: 277). Focusing on protecting children from “physical sexual abuse,” prostitution, and rape and incest involving children, this law represents one of the most extensive modifications of a country’s traditional legislation to be found in most countries. However, seeking, as it does, to reflect the protections envisioned by the CRC, this law only concerns individuals below age 16 (not age 18 as per the CRC definition of a child). Moreover, while the law was passed in March of 2002, a year after its passage the Papua New Guinea Parliament had not, as yet, ratified the law. A United Nations review conducted in 2005 found that little real movement had taken place to actually put the law in to force (UN 2005). And other reports suggest that young people, especially girls, probably are no more protected since the law was enacted than before (ChartsBin 2010; DCD 2004). Thus, while ideal in tone, in practice the ideals of the Papua New Guinea legislation remain unrealized.

The United Kingdom has been especially active in both passing legislation against practically every possible kind of child sex victimization as well as increasing penalties for persons convicted of such offenses (see Darlington 2009; West 2000). Several laws explicitly pertain to children. Others include young people as a mater of course under their provisions. Among the more significant of these are the Obscene Publications Act of 1959 and 1964. This law prohibits the publication of anything that would “deprave and corrupt” anyone exposed to it and subjects offenders to 3 years in prison and an unlimited fine as well as forfeiture of the objectionable material. More specifically the Protection of Children Act of 1978 is designed to protect children from sexual abuse, including being used in any kind of pornographic material. In 1988 The Criminal Justice Act included the possession of child pornography as a criminal act. The Criminal Justice and Public Order Act of 1994 essentially updated the provisions to more clearly cover internet pornography as well as “pseudo-photograph” images depicting children. Later laws increased penalties for virtually all forms of child sexual victimization.

Probably the most extensive legislation concerning child sexual victimization in the UK is the Sexual Offences Act 2003 (OPSI 2003). Besides explicitly focusing on rape and other offenses against children under age 13, the many provisions of this law cover a host of “child sex offenses,” such as “grooming” minors for sexual contact; “abuse of position of trust” offenses (such as causing a child to watch a sex act), “familial child sex offenses” (such as sexual activity with a child’s family member), as well as offenses listed as “indecent photographs of children,” “abuse of

children through prostitution and pornography,” and committing sexual “offenses outside the United Kingdom.”

The United States appears to be more active than any other country in enacting all manner of legislation designed to combat child sexual victimization in all its forms (see: Cox 1999; Thornburgh and Lin 2002). Both Federal legislation and the laws of all 50 states have long criminalized various offenses involving children – such as statutory rape, prostitution, distribution of child pornography, and contributing to the delinquency of a minor. But since the mid-1970s both Federal and State laws have proliferated, and the various ways to deal with known or potential child sex offenders have increased greatly (see: Mears et al. 2008). In addition, numerous legislative efforts have sought to combat child pornography and impose restrictions on convicted sex offenders to deter anticipated further offending (see: Cox 1999; HRW 2007; USDOJ 2010).

Provisions contained in a number of Federal laws enacted by the U.S. Congress in the mid-1990s concerning child pornography were subsequently struck down by the United States Supreme Court rulings and, as of 2009, at least seven states had not enacted laws prohibiting the possession of child pornography (see Darlington 2009). However, in spite of some legal challenges, Federal anti-child pornography laws in the United States, supported by case law stemming from specific cases, are among the most stringent such law to be found anywhere. Essentially, existing United States law makes it illegal to knowingly transport or ship, receive or distribute, sell or possess to sell, or possess child pornography. The original law required that the images produced must have actually involved a minor engaged in sexually explicit activity. Later legislation modified these provisions to include “virtual” images or images involving non-minors that were modified to depict them as being children (see: Cox 1999). In effect, Federal law in the United States, as with that of most states, criminalizes any and all aspects of child pornography regardless of form, source, intent, or medium. And, as difficult as it is to do so, efforts to put this legislation into effect have likewise become major aspects of law-enforcement agencies across the country.

Efforts to combat child pornography in the United States (and other countries) have focused on combating the use of children in the production of this material as well as impeding the possible stimulative effects the material is believed to have on sexual predators by criminalizing its distribution and possession. In addition considerable legal effort has also been directed to preventing known sex offenders from engaging in this conduct again (Cohen and Jeglic 2007). Two basic strategies have been followed: (1) longer periods of incarceration for convicted sex offenders, and (2) various strategies designed to increase the post-release incapacitation of individuals thought to be a continued danger to young people. Prompted by the empirically questionable assumption that sex offenders have a proclivity to reoffend and contending that this would serve to protect potential victims for longer periods of time, from the 1980s onward most states in the United States enacted laws that increased the length of prison sentences for convicted sex offenders of almost all kinds. In addition, jurisdictions have allowed, or even mandated, the post-release civil commitment of certain offenders, effectively removing them from society – possibly for life – once they have served their maximum possible prison sentences.

But unless sex offenders are to be kept locked up for life, the vast majority will one day be released to the community. Based on the fear that released child-sex offenders will recidivate, states and the Federal government also have passed versions of “community notification laws” requiring that sex offenders register with local law-enforcement authorities and, under Federal law, this information must be made available to the general public. Recent research, however, has found that released offenders who fail to register under these laws are no more likely to reoffend than those who comply with the registration requirement. And, in fact, compared to other criminal offenders, released sex offenders have relatively low rates of reoffending in any case (Levenson et al. 2010). As reasoned by Cohen and Jeglic (2007: 374):

Community notification legislation was originally intended to protect children from predatory sex offenders... However, as the legislation is currently being implemented, sex offenders are required to register regardless of the specific circumstances or their crime(s) or whether they received treatment. ... the purpose of this legislation is to protect children against assaults by strangers. However, the majority of assaults ... are committed by acquaintances or people known to the victims, and such legislation does little to protect them...

Even then, the majority of sex offenders, even if actually registering, are not monitored or supervised so that registration does little, in itself, to protect children from possible attack. To increase the effectiveness of post-release tracking of known child sex-offenders, some jurisdictions have implemented “monitoring” laws requiring offenders to wear such devices as global positioning systems. Some states have introduced “life time supervision” programs, effectively placing the released offender on parole for abnormally long periods, even up to life.

An analysis of sex offender laws in the United States by Human Rights Watch (HRW 2007: 10) led to the observation that:

Sexual violence and abuse against children are, unfortunately, a worldwide problem. Yet the United States is the only country in the world that has such a panoply of measures governing the lives of former sex offenders. It is the only country Human Rights Watch knows of with blanket laws prohibiting people with prior convictions for sex crimes from living within designated areas. To our knowledge, six other countries (Australia, Canada, France, Ireland, Japan, and the United Kingdom) have sex offender registration laws, but the period required for registration is usually short and the information remains with the police. South Korea is the only country other than the United States that has community notification laws.

But, as argued by a number of experts in the field, it remains unclear and largely unknown to what extent any of the existing or potential legislatively mandated efforts to combat child sex victimization actually do, or will do, what law makers intend in enacting such laws (see: Cohen and Jeglic 2007; Cox 1999; Davidson and Martellozzo 2008; Gillespie 2005; Thornburgh and Lin 2002; Wright 2009).

Dealing with the Problem

It is generally accepted that the direct sexual victimization of children should be prohibited and punished as criminal behavior. And, in some fashion, virtually all societies prohibit this conduct in criminal statutes. It is, of course, necessary to use the law to try to protect children from being either directly or indirectly sexually

victimized. And, to some extent criminalizing child pornography and sexual assaults against children can serve to deter would-be sexual predators. But, experts agree that law, in itself, is inadequate to protect children from being sexually victimized, even in those countries that have gone to considerable lengths to criminalize all forms of child sexual victimization. Criminologists have long pondered whether, or to what extent, the threat of severe sanctions, or even the experience of being punished, acts as a deterrent to criminal behavior and, if so, for how long. Especially when it comes to “compulsive” behavior, such as sexual predation, it is doubtful if the prospect of legal sanction does anything beyond making the predator more careful in carrying out his or her crimes (Agnew 2005; Kennedy 2009). Thus, while laws against child sexual victimization may be necessary, they alone are of little value in preventing or substantially reducing this kind of child victimization. This point is clearly demonstrated by the problems authorities face combating sexual predators and child pornography on the internet.

Legislating Morality

Both international law and the laws of many countries seek to criminalize the production, distribution and possession of child pornography. As suggested by Taylor and Quayle (2003: 4):

At its worst, child pornography is a picture of a child being in some sense sexually abused. That is to say, at its worst, it is the portrayal of a sexual assault and as such it is therefore the picture of a serious crime in progress. In most Western countries not only the production but also the possession of that photograph (or video or cine film) is itself an offense. Generally, but not exclusively, an adult (often a man) commits the assault portrayed against a younger girl or boy. The person holding the camera is also generally an adult, who in some way directs the abusive content of the photograph. But a picture might as readily involve two or more children of either the same or different sexes. However we construe this, of course, what follows is that such a picture is also the picture of a crime scene.

It would be difficult indeed to disagree with this sentiment. However, it appears this sentiment collides head-on with harsh reality when resorting to the law as a way to combat the production, distribution or possession of child pornography, especially as it pertains to the internet (see Quayle et al. 2008). In the first place, most of the world's countries have no laws of any kind, or totally inconsequential and insubstantial laws prohibiting child pornography. In 2008 The International Centre for Missing and Exploited Children released its fifth evaluation of the existing child pornography legislation in the 187 Interpol member countries. The Centre employed the following five criteria that, in its opinion, would be legislatively adequate to help combat the production, distribution and possession of child pornography, particularly as it pertains to the internet (ICMEC 2008):

1. Exists with specific regard to child pornography;
2. Provides a definition of child pornography;
3. Criminalizes computer-facilitated offenses;

4. Criminalizes possession of child pornography, regardless of the intent to distribute; and
5. Requires Internet Service Providers (ISPs) to report suspected child pornography to law-enforcement or to some other mandated agency.

Among the 187 countries investigated, only five meet all five criteria – Australia, Belgium, France, South Africa, and the United States. Twenty-four meet the first four criteria but did not require reporting by ISPs, although several have voluntary policies. Amazingly, 93 countries had no legislation of any kind that specifically concerned child pornography, although this form of pornography might possibly be subsumed under some general prohibitions against pornography as such. Even then, of the 94 countries that had some kind of legislation regarding child (or general) pornography, 54 did not specifically define the activity, 24 did not include computer-facilitated offenses, and 36 did not criminalize this conduct at all. Even if legislation existed in a specific country that, in some way, prohibited child pornography, of the 187 countries less than 15% were deemed to be in “substantial” compliance with the criteria recommended by the Center.

But the issue of combating child pornography on the internet legislatively goes far beyond the lack of laws in countries across the globe. The fundamental problem faced in stopping porn on the net is the limited ability (and in some ways the total inability) authorities have to enforce whatever laws that do exist while, at the same time, keeping the internet open and also protecting the rights to privacy and freedom of speech.

These fundamental considerations aside, combating child pornography in the age of the internet is also hampered by a number of “technical” problems generic to the world-wide distribution that this medium affords. According to Calcetas-Santos (2001) even where it exists much of the anti-pornography legislation found in countries around the world is simply obsolete since it is based on print as the medium with an actual child as a model. Given technological developments in imaging, much of this legislation has become ineffective. Wortley and Smallbone (2006) identify seven technically-related aspects of internet child pornography that pose “challenges” to its control: (1) the structure of the internet, (2) uncertainties of jurisdiction, (3) lack of regulation of the internet, (4) differences in legislation across jurisdictions, (5) the expertise of offenders, (6) advances in internet technology, and (7) the sheer volume of internet activity.

Most significantly, pornography found on the internet can be produced anywhere and distributed globally. And many governments have failed to put adequate response mechanisms into place. In spite of international agreements, there is no internationally established and recognized definition of child pornography. And, what is considered acceptable in one country may not be so in another. As quoted by Calcetas-Santos (2001: 105) “As one German police officer put it, ‘When it comes to hard core pornography, the difficulty for us is that much of what’s illegal here in Germany is legal and normal in Scandinavia’.” Further, most law-enforcement agencies lack both the equipment and trained personnel to effectively enforce the laws they do have. Indeed, according to Fournier de Saint Maur (2001), the difficulty in taking legal action against the people who physically victimize children in

the production of child pornography is determining the country in which the crime occurred, even assuming authorities in that country are even interested or able to take action. Other considerations can be just as daunting for law-enforcement officials. For example, even within a specific jurisdiction that has clear and unambiguous laws against child pornography, law officers are challenged by such seemingly obvious things as determining if specific images fit within the legal definition of “child pornography,” or determining the age of the individual(s) depicted (Wells et al. 2007).

To some extent the sheer difficulty of enforcing laws designed to protect young people from sexual victimization may explain why both the scope and extent of this kind of victimization seems to be little affected – this in spite of some well publicized examples and concerted effort by some law-enforcement officials. It is, of course, impossible to determine how many children would have been victimized if these laws did not exist or if enforcement efforts were minimal. Data reported by the United States Bureau of Justice Statistics provide an indication of the minimal threat of being punished offenders face for even direct forms of sex victimization in a country that has made a concerted effort to deal with this problem as a criminal matter. According to this report, between 1991 and 1996 an arrest was made in only 27% of the over 60,000 cases that had been reported to officials (Snyder 2000). Arrests were least likely for the youngest victims. This is telling since juvenile victims comprise the majority of sex- offense cases actually handled by law-enforcement agencies. Given that this report only deals with the, probably few, cases that actually come to the attention of law-enforcement agencies, no legal action of any kind likely occurred in the vast majority of sexual assaults on young people in the United States.

Like the United States, the United Kingdom has been exceptionally diligent in cracking down on child sexual victimization of all kinds. However, in spite of “get tough” legislation directed toward child pornography, some observers suggest that, in practice, people who posses and share child pornography have little to fear from criminal penalties. In an analysis of child pornography trials in the Crown Court of England and Wales Susan Edwards (2000) reports that few cases actually were ever prosecuted and most of the cases charged involved the taking of photographs as opposed to possession or distribution. Even then, the persons charged with an offense were rarely also charged with other offenses such as rape that must have legally occurred in order for the photograph to have been taken. According to Edwards (2000) between 1995 and 1997 the number of cases brought to court had increased. However, for the more serious offenses of taking and possession with intent to distribute, prison sentences seem to have remained much the same as in 1995, and case law demonstrates that there are some judges who continue to assume that the “child pornographer” is less dangerous than the child abuser and continue to fail to make a connection between the two.

In countries that devote far less attention to sexual assault, the probability that anything at all will be done to people sexually victimizing young people is probably close to zero. For example, a report for Frontline by the journalist Najibullah Quaraishi reveals how powerful men in Afghanistan (war lords, tribal headmen, Taliban leaders, etc.) routinely own (enslave) “dancing boys” (bacha bazi) who are

dressed as women and trained to dance for them and other men (Frontline 2010). These boys are routinely also sexually abused by their owners, or whomever the owner wants to share them with. Although illegal, as Quaraishi found when interviewing law-enforcement officers, nothing, in fact, is actually done to the offenders. Indeed, while told that men who participate in the practice would be arrested and punished – no matter who they were – Quaraishi's team filmed police officers he interviewed actually participating in an illegal “bacha bazi” party.

Similar abuses occur in Quetta, Pakistan. According to Qazi and Grisanti (2009) it is common practice in Pakistan for impoverished girls to be sexually abused by men from whom they “beg.” For example:

The 11-year-old girl blushed as she walked into the car dealer's showroom on Quetta's Adalat Road in southwest Pakistan. Her 17-year-old cousin, eyes fixed to the ground, followed her. When the younger girl asked the owner for five rupees (6 cents), he pointed to the back room and told both girls to follow him.

A stocky man in his mid-1940s with sallow skin and puffy eyes, he told the girls to lift their shirts – he wanted to see. ‘Very nice,’ the owner said. ‘They are getting bigger,’ he told the 17-year-old as he touched her (Qazi and Grisanti 2009: 1).

The police lament that they can do little to stop the activity since “loopholes” in the law make it virtually impossible to actually legally arrest and prosecute the men responsible for the abuse.

It is questionable if present strategies of law and law-enforcement – in countries that at least attempt to enforce legislation – actually do much of anything to combat child sex victimization of any kind. For example, in an insightful analysis of sexual-predator laws in the United States, professor Eric Janus (2006) argues that existing laws are actually counter productive because, rather than reducing sexual victimization of children, their enforcement deflects resources and attention away from deep-seated societal problems that allow such behavior to flourish in modern societies. A similar sentiment is voiced by Taylor and Quayle (2003) in their assessment of the effectiveness of law-enforcement efforts to significantly impact the availability of child pornography on the internet. For example, they state:

Despite very high expectations (and very considerable resource commitment) associated with high-profile cases such as Operation Cathedral, the actual effect of the amount of child pornography available, or the degree and extent of distribution and collection, is minimal. Even more important, however, operations designed to disrupt networks involved in the exchange of photographs give a false sense of achievement related to the apprehension of producers of child pornography (Taylor and Quayle 2003: 204).

And, in some cases, the dictates of legislation border on the absurd. For example, in the United States, and many other countries, individuals convicted of sex offenses are restricted in where they are allowed to live. As reasonable as these restrictions may seem, in some cases it becomes almost virtually impossible for non-institutionalized offenders to live anywhere. In the state of Florida, for instance, residency restrictions forced child-sex offenders to camp out under a causeway spanning Miami's Biscayne Bay in unsanitary and squalid conditions (Skipp and Campo-Flores 2009).

And, in the digital age, innocent photographs of children shred with friends or family can somehow be found all over the web for any pedophile to lust over.

And, given the ambiguity of laws defining what constitutes “child pornography” even when a parent shares a picture of a bare-bottomed infant with others could get the “pornographer” into trouble with the law (Alexander 2010). In an assessment of law in the United Kingdom, the legal scholar Donald West (2000) contends that the widespread public and political attention child sexual victimization received in the United Kingdom may, or may not, have had any serious impact on either the frequency or seriousness of such conduct. It did, however, lead to a more punitive atmosphere of how convicted, or even suspected, sex offenders were treated in some cases causing grossly unjust accusations and punitive sentences. This punitive approach, West argues, may have made members of the public feel safer (or actually may have had the reverse effect) and was good for political purposes, but it also diverted resources and attention away from potentially more beneficial approaches, such as treatment of compulsive offenders. West (2000: 527) concludes:

Whether well-intentioned recent legislation proves beneficial will depend on the new powers and responsibilities given to police, probation, social services and sentencers being used with discretion and without attention to popular clamor. The public needs educating to prevent such labels as ‘paedophile’, ‘predator’ and ‘incurable’ being used indiscriminately. Existing possibilities of diversion from criminal justice to effective treatment and welfare should be utilized fully, particularly for sexual problems arising within families. For the minority of offenders who are dangerously deviant and uncontrolled, hospitalization remains a more constructive response than imprisonment.

Besides passing laws prohibiting it, the question is what more can be done to protect children from being sexually victimized?

What More to do?

Given the ubiquity of the problem both in form and space, it is clear that no single solution or type of solution could possibly resolve the question of how best to protect children from being directly or indirectly sexually victimized. Indeed, the kind of efforts we might employ to “protect” young people from viewing pornography on their computers would likely be quite different from the measures needed to end the child-sex tourism industry. And combating sex-tourism would not involve the same strategy as catching an online predator intent on grooming young victims. Dealing with internet sex-predators is fundamentally different from preventing a parent or sibling from sexually abusing their child or younger sibling at home. And forcing organizations to effectively police members who victimize children in their charge is not the same as taking action against individuals sharing pornographic photos of children over the internet. Criminal laws and their actual enforcement are, of course, needed in addressing all aspects of child sexual victimization. However, other means are also needed to help in this effort.

Concern over actual and possible threats to young people from sexual predators and the possible exposure of young people to pornography have spawned a virtual world-wide child sex-protection industry. Besides local and international efforts to criminalize and punish sex offenders, numerous organizations exist exclusively

dedicated to this issue, or include it in their lists of concerns. Many dozens (if not hundreds) of websites and publications offering advice, guidance, programs, counseling, expertise, or resources to combat the problem of child sex victimization are available to anyone or any organization desiring to deal with the problem, or anyone who feels they need “help” for virtually any aspect of child sexual victimization (see e.g., Child Welfare Information Gateway [no date](#); Council of Europe [2010](#); ERIC Digest [1990](#); Prevent Child Abuse America [no date](#); Stop It Now [no date](#); Smallbone et al. [2008](#)). These organizations and numerous experts from diverse fields have suggested a variety of strategies that might be reasonably employed to combat one or another aspect of child sex victimization. Essentially four major approaches have been suggested: technology, economic, education, and treatment of offenders (see Wortley and Smallbone [2006](#)).

As with the world-wide drug problem, the law may not be either the best or most effective way of dealing with many forms of child sexual victimization. But, given that the technology associated with the internet is considered to be largely responsible for facilitating, if not fostering, the apparent worldwide explosion in child sex victimization, a number of people have proposed a variety of technological solutions to aid law-enforcement agencies in identifying actual, or potential, sex offenders and capturing them before or after they have committed some offense.

Two aspects of child sex victimization have received the most attention. On the one hand, many law-enforcement agencies have created specialized units devoted to intercepting and apprehending predators who use the internet to locate, groom, and gain access to victims. Posing as juveniles in chat rooms and other communication programs favored by young people, some police departments have become quite adept at identifying and apprehending offenders before they can actually cause harm to victims. Other than making some would-be predators more careful in soliciting victims, it is unknown how successful this approach is in substantially reducing online solicitations. The tactic is expensive to maintain and operate and probably only detects a fraction of those who are engaged in such behavior. And, the vast majority of law-enforcement agencies in the world have neither the means nor competent staff to operate such units. For example, in the Netherlands an analysis of efforts to police internet child pornography found that the Dutch police had very limited computer knowledge and lacked the inter-agency collaborations needed to effectively police the internet (Stol [2002](#)). Moreover, the tactic does virtually nothing to counter the majority of sex victimization cases occurring in the home by family members or acquaintances of the victims.

However, technological advances in policing sex offenders have gained wide publicity. One case that received considerable media attention in 2007 involved digitally recreating scrambled images of an offender who had filmed himself engaged in sexual acts with children in various countries. Computer specialists at the federal police agency in Germany in association with Interpol’s human trafficking team were able to unscramble the pictures, and ultimately identify and capture the offender (BBC [2007](#); MSNBC [2007b](#)). According to the BBC report, nearly 600 victims of child sex victimization from 31 countries have been rescued using sophisticated computer technology. And coordinated policing efforts in countries around

the world have led to some dramatic, and well publicized, apprehensions of hundreds of offenders in numerous countries (BBC 2005a, 2009d, e). In one raid, a reported 700 suspects were apprehended worldwide and some 31 children were rescued (MSNBC 2007c).

A second technology based approach is for internet “watch” organizations to monitor the internet for sites containing child pornography and alert authorities for appropriate action. In some cases such sites are then either shut down or actually removed from the net. One organization called the Internet Watch Foundation in the United Kingdom (see <http://www.iwf.org.uk/>) is dedicated to reporting “illegal” internet content to authorities, and has been especially effective in identifying sites containing child pornography. A similar organization in the United States, the Association of Sites Advocating Child Protection (ASACP) advertises itself as a non-profit organization dedicated to online child protection that battles child pornography through its “CP Reporting Hotline” and helps parents prevent children from viewing age-restricted material online with the “Restricted To Adults – RTA Website Label.”

However, since most countries have neither laws requiring or allowing sites containing child pornography to be taken off the web, or, even if so, no apparent enforcement mechanisms to do so, child pornography distributors have little to fear from such detection. On the other hand, identifying these sites can help law-enforcement agencies monitor the internet activity of known or suspected sex predators, and to prosecute apprehended offenders who have visited such sites in the past. As indicated by international mass arrests, this monitoring activity can facilitate the enforcement of anti-child pornography laws in those countries concerned enough about this activity to take action.

Other technological fixes are aimed at helping parents protect young people from being exposed to pornography or coming into contact with predators online (Aftab 2001). Thus, a variety of internet tools to block a child’s access to certain sites or to help parents monitor internet activity are commercially available. The most common such devices appear to be “filters” that prevent young internet users from locating pornography, should they seek it out. Other approaches seek to require internet service providers (ISPs) to verify the ages of individuals who want to open accounts. How effective these tools may be is unknown. Indeed, it is virtually impossible to determine how many young people have purposively or inadvertently visited any kind of pornographic web sites, or how many have not done so due to some kind of technological protection associated with their internet access. Similarly it is impossible to determine how many young people have not been subjected to unwanted (or wanted) encounters with child sex-victimizers on the internet due to technological devices that “protect” them from such encounters. Indeed, perhaps, as many experts have suggested, the best way to protect young people from pornography or sex victimization grooming on the web is through parental monitoring – something that has become increasingly more and more difficult as web based technologies have proliferated and changed throughout the world (see ITFCR 1999; Quayle et al. 2008; Wortley and Smallbone 2006).

As with many social issues, perhaps one of the more effective ways of combating child sex victimization, at least those forms facilitated by the internet, is to take the

profit out of it wherever possible. Pornography has become a multi-billion dollar money-maker for internet service providers. Given the competition among such providers, convincing them to close down sites that offer child pornography posed a major economic obstacle. Unless all, or a significant number of, major providers agreed to do so, it is not in any individual provider's economic interest to take the initiative. After considerable lobbying and public attention, as well as the possibility of criminal prosecution stemming from new child pornography laws in many countries, this situation began to turn around by the early 2000s when major ISPs collectively agreed to take action to ban child pornography sites from their servers once such sights were identified and authenticated. In New York State, for example, ISPs were pressured into agreeing to purge child pornography sites (Albanesius 2008). Subsequently nationwide the majority of ISPs signed a pact to ban child pornography (Thomson 2008). And in 2009 the European Union proposed steps to be taken by member nations to block access to sites containing child pornography (Williams 2009). Such legislation, however, is not without controversy. For example, an attempt to reintroduce an ISP child pornography bill in Canada had met with considerable resistance (Bode 2010). And in Pennsylvania the strict law to ban child pornography on the internet has come under attack by civil liberties groups (Hall 2009).

One possible consequence of these various measures has been to make it more difficult to locate child pornography on the web, at least, for casual searchers or those not knowledgeable of search techniques. And, distributors have had to change and reestablish closed sites with different internet addresses, reducing their easy availability to searchers. It is not known to what extent, if at all, this has ended the use of children in the production of pornographic material. Nor is known to what extent they have reduced the relative amount of such material available on the web. Like putting a better lock on one's door, making crime more difficult to commit may be a deterrent, but certainly not prohibitive to any determined criminal.

A similar approach is for credit card companies (and credit reporting companies) to tag cards used to purchase pornography, especially child pornography and make such information available to the police. Since most purchases of pornography on the web are handled via credit cards, this approach, where legal, can put an economic dent in the sale and availability of child pornography while also helping to identify individuals who access such material for possible legal action. An organization called "Financial Coalition Against Child Pornography" (FCACP) is dedicated to doing just that. The goal of the FCACP is to "eradicate the profitability of commercial child pornography by following the flow of funds and shutting down the payments accounts that are being used for these illegal enterprises" (ECPAT 2008).

However, economic incentives are of little consequence except for the commercial pornography trade since the distribution of much child pornography is not of a commercial nature, and is rather shared by individuals who network to distribute and receive such material, or simply put it on the web for the producers own ego gratification. Thus, the impact of economic counter-measures is probably minimal. But this does not necessarily mean that all economic measures are of no value in combating child sexual victimization. One creative approach is indicated by the lawsuit brought by a woman whose uncle used her when she was a child to "star" in a series of pornographic photographs and films that were made available to people

collecting such material (Schwartz 2010). The lawsuit demanded that everyone convicted of possessing even one image of her pay her damages. Similarly, in what is reported to be the first criminal case of its kind, a Connecticut judge ordered a British man who was convicted of possessing child pornography to pay the victim close to \$200,000 in restitution (MSNBC 2009d). But, even though the payment of damages from the producers of child pornography is considered quite within the bounds of law, some legal scholar have questioned whether demanding payment from those who simply possess images will survive on appeal.

The late 1990s and early 2000s saw the creation of a number of efforts intended to deal with the threat to children from online predators and internet child pornography similar to the “Just Say No” “DARE” other “education” efforts to “deal” with the epidemic of drugs believed to be plaguing young people in American and other western nations. A plethora of guides, manuals, pamphlets, and full-fledged courses to teach young people and others about the dangers of porn and sex predators on the net became available, as did various “educational” programs to help children ward off predators. If offenders could not be stopped by the law, an educated public could serve as a bulwark against victimization.

Typically referred to as “child-focused sexual abuse prevention programs,” these efforts have been directed to communities, parents, teachers, organizations, or children. Most are carried out in school settings. It is essentially believed that “naivety increases children’s vulnerability to sexual victimization, these programs seek to counter children’s ignorance about sexual abuse” (Sanderson 2004: 1). As Sanderson (2004) concluded, the basic idea behind these programs is to teach children what sexual abuse actually consists of, teach them how to resist overtures, and, importantly, teach children to tell parents or other trusted adults about such instances. Sanderson observes, most of these programs have not been subjected to rigorous testing regarding their effects on children and are typically implemented on faith alone. However, the evaluations that have been carried out do suggest that well conducted educational programs can increase children’s knowledge about sexual advances and encourages them to tell responsible adults when they do occur. This could possibly help to ward off successful attacks to prevent greater harm. A similar assessment is offered by Finkelhor (2009) who further suggests that educational approaches should actually be expanded to include all types of sexual abuse and sex crimes against children, such as “peer sexual assault” and consensual (if still illegal) sex between teens and any adults.

It is an open question if educating people has done much more than increased public awareness of the threat, simply heightened public concern or, in fact, has had a real impact on reducing child sexual victimization. Little evaluation of the “crime-reducing” impact of these efforts is to be found in the literature. However, some educational efforts may have had at least some benefit on helping young people guard against predators intent on victimizing them. One evaluation of the victimization-reducing impact of these programs is suggestive. Based on a sample of women in a North American colleges, this research found that while 14% of the respondents who had never taken a prevention program in school were subsequently sexually abused, only 8% of those who did participate in such a program suffered this form

of victimization. Of course, for those youths who seek out such contacts education, as with other forms of prevention, probably has little impact at all.

Contrary to popular belief largely fostered by media coverage of extreme cases usually involving individuals with records of sex offending, sex offenders generally do not have higher recidivism rates than other offenders, and in many cases their rates are lower. Indeed, “the vast majority of new sexual assaults are not committed by RSOs {repeat sexual offenders}, but by first-time sex offenders” (Levenson et al. 2010: 307, brackets added). In part, this is an artifact of post-release restrictions on incest offenders making it close to impossible for them to commit the same crimes again. And, in part, it is probably due to the closer monitoring many offenders released from prison receive as a consequence of laws and tighter parole conditions. Yet, overall, the belief that “once a sex offender always a sex offender” is simply wrong (Hanson et al. 2002).

What is believed to be a small group of offenders who suffer from severe mental abnormalities do appear to be at very high-risk of reoffending. Identifying these individuals, and taking appropriate preventive action, remains a difficult problem for law-enforcement and corrections agencies. Many simply may have to be incarcerated for the rest of their lives, as allowed by civil commitment laws and other recent legislation in some countries that allow the continued confinement of high risk offenders once sentences have been served. In 2010 the Supreme Court of the United States, for example, ruled that Congress has the authority under civil law to allow the continued commitment of sex offenders even after they have completed their criminal sentences (Liptak 2010). But, experts believe that the vast majority of sex offenders (known or not) are not of this kind, and the behavior of most could be held in check if they are subjected to appropriate treatment intervention programs. Jurisdictions in almost all Western nations have such programs in operation. The question is: “Do they work?”

A large body of evaluation research has been conducted on sex offender treatment programs. Conclusive statements regarding the effectiveness of treatment, or any particular type of treatment, can not be made. Available research does suggest that it is probable that treatment interventions can be effective ways of reducing recidivism and, for many sex offenders, treatment can even totally prevent reoffending behavior (see, e.g., Donato et al. 1999; Oliver et al. 2009; Przybylski 2008; Roberts et al. 2008). We still have a lot to learn in this regard, and until various programs have been shown to “work” people would probably be quite reluctant to use treatment as the alternative to incarceration. However, research also shows that the public is much more favorable to treatment approaches than lawmakers seem to think they are and would welcome such strategies over simple incarceration if provided the option (Roberts and Hough 2002; Travis et al. 2006). Thus, expanding treatment both within institutional and in post-release settings to reduce recidivism is probably a realistic and potentially beneficial way of dealing with known sex offenders.

The problem in most cases, of course, is that until one becomes a “known” (caught, convicted) offender requiring someone to undergo treatment is problematic, and the behavior we hope to prevent has already taken place. Thus, treatment may

help to reduce reoffending but does little to prevent such behavior in the first place. And, since most offenses, and probably most offenders, are never “known,” treatment applies to a potentially small number of actual offenders and, therefore, does little to help a large number of actual or potential child victims. This realization has led some experts to argue that more aggressive pre-offense measures are needed before any real reduction in child sexual victimization will occur (Petersen et al. 2005; Sanderson 2004). Ideally these “preventive” programs would be implemented when, and wherever, conditions conducive to child sexual victimization are present (Wortley and Smallbone 2006a). One such effort was initiated in Germany in 2005 (Beier *nd*). Referred to as the Child Sexual Abuse-Prevention Project Dunkelfeld (CSA/PPD) this program is designed to invite individuals likely to commit or recommit child sex victimization acts to come to centers for “help.” Each month, an average of 15–20 individuals contacted the office. Of the contacts about half traveled to the outpatient clinic for assessment and 50% of these were invited to participate in a treatment program. As a pilot program, the undertaking was deemed successful in locating “undetected” pedophiles and hebephiles in the community.

In reality, we as yet know too little about the nature of the conditions that lead individuals to commit sexual attacks or increase the probability that a young person will be victimized. And, even if we did, actually implementing effective protective measures would very likely run afoul of civil-liberty issues and feelings about the sanctity of the family and home to be of much significance, except in the most blatant abuse-likely cases. But, this approach would require a total shift in the public’s image of the nature of child sex victimization and the persons most often responsible for it and would shift the burden of preventing child sexual victimization from law-enforcement agencies to social service agencies (see e.g., Wokak et al. 2004).

Conclusion

Young people have been objects of sexuality and exploitation throughout history and everywhere in the world. Until the modern era, in many, if not necessarily most, societies sex with and among children and young people does not appear to have been considered either abnormal or repulsive, certainly not something for concerted public action. By the twentieth century, beginning in Western societies, people around the world began to recognize that the involvement of children in sex was a form of victimization – something to be stopped and dealt with. Both international organization and individual countries began to initiate a host of efforts to deal with the “child sex victimization problem.” As discussed in Chapter 5, considerable effort has been devoted by some organizations and governments to put a halt to the trafficking of children for sexual exploitation in the commercial sex industry as well as preventing “sex tourism” targeting child victims. These efforts dove-tail with other efforts of governments and NGOs to curtail the worldwide distribution of child pornography, and the detection and apprehension of individuals using the internet to locate and sexually-victimize children, as well as more adequately taking action to

prevent child sexual victimization generally (Carr 2003; Mukasey et al. 2007). Protecting children from sexual victimization of all types has become a major international concern. Numerous diverse countries have apparently come to recognize that there is a problem requiring that something be done about it. What to do remains the issue.

Australia, for example, has attempted to block internet child pornography through “industry self-regulation” and “a voluntary code of practice.” Following two inquiries and government review, Australia further sought to establish a complaints hotline, develop a code of practices for the internet industry, and foster community education programs. Strong Australian legislative action to actually ban child pornography from internet sites, however, does not appear to be in the works (Stanley 2001). In France, following a scandal involving a released sex offender, the government vowed to take new measures to deal with repeat sex offenders, primarily by detaining them in a secure hospital until doctors decided they are no longer dangerous (BBC 2007a). And in Thailand the authors of a survey of internet use by Thai children recommended that abuse be prevented through guidelines in schools and internet cafes, establish mechanisms to report abuse, and recommending that children and parents have constant dialogue about their use of the internet (Michelet 2003). In Saudi Arabia the establishment of child abuse and neglect centers appears to be a success by helping, at least, a small number of abused children (Al Eissa and Almuneef 2010). Similar progress seems to have begun in a number of Eastern European countries (Lewis et al. 2004). But in more than 20 years of efforts to implement the Convention on the Rights of the Child in sub-Saharan Africa little progress seems to have been made (Mulinge 2009).

Over the past few decades there are some indications that sexual victimization rates in some countries may have actually declined somewhat (Finkelhor 2009). But, in most countries no comparable data exists even to make judgments. So it is impossible to say that children in the world today are safer from sex victimization than they were at some other point in recent history. Awareness of all kinds has risen. Whether safety has also increased is impossible to know.

In some parts of the world, especially North American and Western European countries, government agencies devote considerable energy to at least going after and stopping sexual predators. For example, the European Commission, in conjunction with credit card companies and several major ISPs, agreed to finance the European Financial Coalition to fight child pornography on the internet in member countries (EUROPA 2009). More could probably be done. However, child sex victimization is not limited to Western nations. And, as with virtually all other forms of child victimization, even where they are aware of the problem’s existence, governments in many parts of the world have chosen to do essentially nothing about it. If they are pressed, agents of these governments may voice “a lack of resources,” “more pressing problems,” “cultural values” or other rationalization to justify their inaction. Governments voicing such arguments are, in effect, complicit in the victimization of their own children. They are, therefore, as guilty of child sexual victimization as the possessor of child pornography, the internet groomer, or the uncle who rapes his nephew.

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